

26STCV06694 26STCV06694

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Case Number: 26STCV06694 Hearing Date: August 13, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KISMAH SHANTEE KENDALLA,

Plaintiff,

vs.

SPECTRUM MECHANICAL, INC., et al.,

Defendants.

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CASE NO.: 26STCV06694

[TENTATIVE] ORDER DENYING MOTION FOR STAY
OF PROCEEDINGS; DENYING MOTION TO COMPEL INSPECTION

Dept. 506

8:30 a.m.

August 13, 2026

On March 2, 2026, Plaintiff Kismah
Shantee Kendalla (individually and as the Successor-in Interest to The Estate of
Casandra Fay Webber aka Casandra Fay Johnson) filed this action against Defendants
Spectrum Mechanical Inc. and Luis Francisco Lopez.

On
July 6, 2026, Defendants filed a motion to stay the proceedings until completion
of pending criminal proceedings.

On
July 9, 2026, Plaintiff filed a motion to compel inspections of the subject vehicle.

MOTION
FOR STAY

“The
decision whether to stay civil proceedings in the face of a parallel criminal proceeding
should be made “in light of the particular circumstances and competing interests
involved in the case.”” (Avant! Corp.

v. Superior Court (2000) 79 Cal.App.4th 876, 885.) The court should “consider ‘the extent to which the defendant’s fifth amendment rights are implicated,’” as well as “‘(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation.’” (Ibid.)

The

Complaint alleges that during the course and scope of his employment with Defendant Spectrum Mechanical Inc., Defendant Luis Francisco Lopez’s vehicle collided with Casandra Fay Webber, causing her catastrophic injuries and death. Accordingly, Lopez’s Fifth Amendment rights are directly implicated in this action. However,

“‘[t]here is no blanket Fifth Amendment right to refuse to answer questions in noncriminal proceedings’ [citation] and that ‘[t]he privilege must be specifically claimed on a particular question and the matter submitted to the court for its determination as to the validity of the claim.’ [Citations.] This has long been the rule in California with respect to both criminal and civil proceedings.” (Warford v. Medeiros (1984) 160 Cal.App.3d 1035, 1044-1045, footnote omitted.) “[A]

litigant’s ‘say-so does not of itself establish the hazard of incrimination.’” (Siry Investment, L.P. v. Farkhondehpour (2020) 45 Cal.App.5th 1098, 1124.) If Defendants object to certain discovery requests or deposition questions on Fifth Amendment grounds, the Court will conduct a particularized inquiry with respect to each specific claim of privilege to determine whether the privilege applies. (Ibid.) Thus, Lopez’s rights can still be protected if this litigation proceeds. Furthermore, Plaintiff agrees to defer Lopez’s deposition pending the resolution of the criminal case. (Opposition at p. 6.)

After

considering the particular circumstances and competing interests involved in this case, the Court concludes that a stay should not be imposed at this time.

MOTION

TO COMPEL INSPECTION

Plaintiff’s

counsel is “informed and believe[s] that the Subject Vehicle is being held as evidence in connection with that criminal matter” against Defendant Lopez. (Bayona Decl. ¶ 5.) Plaintiff “seeks only a supervised, non-destructive inspection” of the vehicle and “requests an order compelling the prosecuting agency

and/or current custodian to allow Plaintiff's experts to conduct the non-destructive inspection described in the Motion." (Bayona Decl. ¶¶ 7, 14.)

If a responding party fails to comply with a demand for inspection, the demanding party may move for an order compelling compliance. (Code Civ. Proc., § 2031.320, subd. (a).) Here, however, Plaintiff has not served any subpoena for the Court to compel compliance. Plaintiff only "requested access to inspect the Subject Vehicle," but "[t]he prosecuting agency refused to produce or make the vehicle available, stating in substance that it needs the vehicle for the criminal case." (Bayona Decl. ¶ 6.)

Because there is no subpoena for which the Court can compel compliance, the motion is denied without prejudice.

CONCLUSION

The motion for stay of proceedings is DENIED.

The motion to compel inspection is DENIED WITHOUT PREJUDICE.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 13th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court